Minutes of the Meeting of the Council of the Corporation of the Town of Ajax Held in the Council Chambers of the Town Hall on Monday, October 15, 2019 at 7:00 p.m.

Alternative formats available upon request by contacting:
accessibility@ajax.ca *or 905-619-2529 ext. 3347*

Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	R. Tyler Morin
		A. Khan
		L. Bower

1. Call to Order

Mayor Collier called the meeting to order at 7:00 p.m. and acknowledged traditional treaty lands.

Mayor Collier noted that an outstanding matter from the October 15th, 2019, GGC meeting regarding Nominations to Durham Regional Police Services Community Safety Advisory Council would be addressed in a Closed Session of Council later in the meeting.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interest.

3. Adoption of Minutes

3.1 Special Meeting September 16, 2019

Moved by: L. Bower
Seconded by: A. Khan

That the Minutes of the special meeting of Council held on September 16, 2019 be adopted.

CARRIED

3.2 Special Closed Session September 16, 2019

Moved by: J. Dies
Seconded by: M. Crawford

That the Minutes of the special Closed Session meeting of Council held on September 16, 2019 be adopted.

CARRIED

3.3 Regular Meeting September 16, 2019

Moved by: A. Khan
Seconded by: L. Bower

That the Minutes of the regular meeting of Council held on September 16, 2019 be adopted.

CARRIED

4. Question Period

Mayor Collier invited questions from the public regarding any items on the meeting agenda.

There were no questions from the public.

5. Delegation and Petitions/Public Hearings

None

6. Correspondence

Members separated items 5, 8, 14, and 16 from the correspondence report.

Moved by: S. Lee
Seconded by: J. Dies

That the report dated October 15, 2019 containing Items of Correspondence be adopted.

CARRIED

Council Members discussed correspondence item 5 received from the City of Pickering regarding Age Friendly Affordable Housing Strategy. Members discussed intensification rates for the Region of Durham proposed in the motion, and the Town's desired intensification rates.

Referral Motion

Moved by: S. Lee
Seconded by: M. Crawford

That the correspondence received from the City of Pickering regarding Age Friendly Affordable Housing Strategy be referred to staff for development of a response to the Region of Durham.

CARRIED

Council Members discussed endorsing correspondence item 8 received from the Town of Whitby regarding Lake Ontario Flooding. Members discussed flooding risks to lakeshore municipalities in Durham Region.

Motion

Moved by: S. Lee
Seconded by: M. Crawford

That the correspondence received from the Town of Whitby regarding Lake Ontario Flooding be endorsed.

CARRIED

Council Members discussed endorsing correspondence item 14 received from the Town of Penetanguishene regarding municipal amalgamation. Members discussed the motion's request for public consultation before any municipal amalgamations are considered as part of the regional governance review.

Motion

Moved by: M. Crawford
Seconded by: A. Khan

That the correspondence received from the Town of Penetanguishene regarding municipal amalgamation be endorsed.

CARRIED

Council Members discussed endorsing correspondence item 16 from the City of Pickering regarding producer requirements for packaging in Ontario.

Motion

Moved by: M. Crawford
Seconded by: A. Khan

That the correspondence received from the City of Pickering regarding producer requirements for packaging in Ontario be endorsed.

CARRIED

7. Reports

7.1 Community Affairs & Planning Committee Report

Moved by: M. Crawford
Seconded by: S. Lee

That the Community Affairs & Planning Committee Report dated October 15, 2019 be adopted.

CARRIED

7.2 General Government Committee Report

Moved by: L. Bower
Seconded by: M. Crawford

That the recommendations and resolutions approved at the General Government Committee meeting held October 15, 2019 be adopted as resolutions of Council.

CARRIED

7.3 Summary of Advisory Committee Activities

Moved by: A. Khan
Seconded by: M. Crawford

That the Summary of Advisory Committee Activities dated October 15, 2019 as attached to the meeting agenda be received for information, and that the recommendations contained therein be referred to staff where applicable.

CARRIED

7.4 Departmental Reports

None

8. Regional Councillors' Report

Regional Councillors provided an update regarding matters before Durham Regional Council, including provincial funding for a new seniors dental care program, provincial funding for subsidized childcare spaces in Durham, red light cameras and automated speed enforcement pilot locations in Ajax, presentation by the Spark Centre regarding technology hubs in Durham, and discussion of the 2020 target regional tax rate increase.

Moved by: S. Lee
Seconded by: R. Tyler Morin

That the Regional Councillors' Reports of October 15, 2019 be received for information.

CARRIED

9. Business Arising from Notice of Motion

Mayor Collier vacated the Chair. Deputy Mayor Crawford assumed the Chair.

9.1 Boulevard Encroachments

Mayor Collier reviewed the contents of the motion and discussed private property owners modifying Town boulevards, and enforcement activities by the Town on this matter. It was noted that this matter was previously addressed by Council in June of 2019, requiring a motion to reconsider the matter.

Motion to Reconsider – Enforcement of Road Occupancy Bylaw (2/3rds):

Moved by: S. Collier
Seconded by: R. Tyler Morin

That the following Council decision from June 2019 be reconsidered:

"That Council direct By-law Services staff to resume with enforcement activities for all individuals that have altered the Town's boulevards before or during the suspension of enforcement activities since December 2018."

CARRIED (2/3rds)

Members discussed the proposed motion, criteria for eligibility to enter into encroachment agreements with the Town, and suspension of enforcement until Council considers a potential encroachment agreement program.

Moved by: S. Collier
Seconded by: L. Bower

1. That staff be directed to examine a program whereby residents who have altered, or wish to alter, the Town Boulevard abutting their residential property may enter into an encroachment agreement with the Town to allow the alteration, subject to certain criteria and requirements;

2. That staff be directed to report back to Council or the appropriate standing committee no later than March 2020; and

3. That Council direct By-law Services staff to suspend enforcement activities for all individuals that have altered the Town's Boulevard along residential properties, pending a decision on a potential encroachment agreement program for residential properties, subject to the exception that enforcement may be applied where, in the opinion of staff, a severe and immediate risk to public safety exists.

CARRIED

9.2 **Delegation of Authority for Appointment of Deputy Mayor**

Mayor Collier reviewed the contents of the motion. Regional Councillor Lee raised a point of order regarding whether the resolution constitutes reconsideration of a previous decision of Council on December 10, 2018. Nicole Cooper, Director of Legislative & Information Services / Town Clerk, noted that, in the opinion of Legislative Services, the resolution does not constitute reconsideration of a prior decision of Council. Members asked questions regarding the existing practice for selection of Deputy Mayors, and how selection would occur under the proposed delegation of authority. N. Cooper responded to questions from Council Members.

Members discussed the resolution and considered the merits of delegating authority for the appointment of the role of deputy mayor for the Town.

Moved by: S. Collier
Seconded by: A. Khan

WHEREAS Ajax Council has established the role of Deputy Mayor in Section 5.1 of its Procedure By-law;

AND WHEREAS the Mayor from time to time requires another member of Council to act in their place;

AND WHEREAS the Mayor and the Town benefit from maximum flexibility in choosing the Deputy Mayor, based on which member is available at a particular time, and which member would be most appropriate for a particular event or duty;

AND WHEREAS there are examples in other municipalities where the Mayor has a prominent role in selecting the Deputy Mayor;

AND WHEREAS Section 23.1 of the *Municipal Act*, 2001, permits the municipality to delegate its powers and duties to a person or body, including to specific members of Council;

NOW THEREFORE BE IT RESOLVED THAT Council hereby delegates the powers under Section 5.1 of the Procedure By-law (Appointment of Deputy Mayor) to the Mayor, subject to the restriction that the appointee must be a Regional Councillor of the Town of Ajax.

AND THAT the Mayor shall notify the Town Clerk in writing each time this power is exercised.

CARRIED

Recorded Vote
In Favour: Mayor Collier, Councillor Khan, Councillor Tyler Morin, Regional Councillor Crawford
Opposed: Councillor Bower, Regional Councillor Dies, Regional Councillor Lee

Mayor Collier resumed the Chair.

10. By-laws

Moved by: R. Tyler Morin
Seconded by: J. Dies

That By-law numbers 56-2019 to 60-2019 be read a first, second and third time and passed.

CARRIED

11. Notice of Motion

None

12. New Business - Notices & Announcements

Council Members highlighted upcoming events including public open houses and community meetings.

13. Closed Session (7:55 p.m.)

Motion to Hold a Closed Session

Moved by: S. Lee
Seconded by: A. Khan

That Council convene to a Closed Session pursuant to Section 239 (2) (b) of the *Municipal Act, 2001,* as amended, to discuss matters pertaining to a personal matter about an identifiable individual, including municipal or local board employees.

CARRIED

13.1 Nominations to Durham Regional Police Services Community Safety Advisory Council

Open Session (8:07 p.m.)

Motion

Moved by: S. Lee
Seconded by: J. Dies

That Council nominate the following individuals for appointment to the Durham Regional Police Services Community Safety Advisory Council:

Ward 1
- Rosanne Purnwasie
- Tracey Smith

Ward 2
- Olga Lambert
- Kenroy Wilson

Ward 3
- Kayla Ginter
- Barbara Murray

CARRIED

14. Confirming By-Law

Moved by: R. Tyler Morin
Seconded by: S. Lee

That By-law number 61-2019 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its regular meeting held on October 15, 2019 be read a first, second and third time and passed.

CARRIED

15. Adjournment

Moved by: A. Khan
Seconded by: M. Crawford

That the October 15, 2019 meeting of the Council of the Town of Ajax be adjourned. (8:08 p.m.)

CARRIED

for Mayor

D-Clerk